

USER TERMS AND CONDITIONS – SAMPLES FROM MARS

ANY PERSON OR ENTITY ("User" or "You") USING OR OTHERWISE ACCESSING THE SITE AT www.SamplesFromMars.com ("Site") OR ANY OF THE INFORMATION CONTAINED WITHIN THE SITE MUST AGREE TO BE BOUND BY THE FOLLOWING TERMS AND CONDITIONS OF THIS USER AGREEMENT ("Agreement").

PERSONAL DATA: You agree to provide only true, accurate and complete information to us via the Site. Any personal information provided by Users will be treated with appropriate care and security in accordance with, and by agreeing to this Agreement you expressly agree to the terms of, our [Privacy Policy](#).

1. **Contracting parties.** The Site and all content, data and other materials contained therein ("**Content**") are owned or controlled by Samples From Mars LLC, a company incorporated in the State of New York with its registered office at 97 S. 6th Street, Suite 3, Brooklyn, NY 11249, USA. Samples From Mars LLC is referred to in these terms and conditions as "**we**", "**us**", "**our**" or "**Company**". When you register with or otherwise access the Site, you are contracting with Samples From Mars LLC.
2. **Content.** The Site and the Content are intended only for the purposes specified or implied therein, and your use of the Site and Content is entirely at your own risk. Please note, while we endeavor to provide accurate and up-to-date information, the Content may not be wholly accurate or up-to-date, complete or free of defects, and is subject to change, often at very short notice. All Content is provided without any representations or warranties of any kind (implied or express) to the fullest extent permitted by applicable law. The Company, unless otherwise stated herein, owns or controls all relevant intellectual property rights in the Site and the Content. You may not publish, distribute, extract, re-utilize, or reproduce any part of the Site or the Content in any form (including storing it in any medium) other than as expressly allowed herein or as set out in the Site and the Content (or under local law). Save as expressly set out in this Agreement, the Site and the Content are for your personal use only, and are not for re-distribution, transfer, assignment or sublicense. The Company shall not be responsible if any Content does not fit your particular purpose
3. **Passwords.** If you registered with us, you agree: to keep your password secure and confidential and to not allow anyone else to use your email address or password to access the Site or any Content; to not do anything which would assist anyone who is not a Registered User to gain access to any secured area of the Site, and; to not create additional registration accounts for the purpose of abusing the functionality of the Site or any Content, or other Users, or to seek to pass yourself off as another User. If you think someone else has obtained your account details, please let us know immediately via info@samplesfrommars.com and we will close your account as quickly as possible. Please note that you will be responsible to the Company and to others for all activity that occurs under your registered account.
4. **The Service.** Samples From Mars is an online service with which you can browse and/or purchase for download pre-recorded sounds, sound effects, loops and samples ("**Audio Products**") (collectively, the "**Service**"). Details of how to purchase Audio Products are listed on the Site. We reserve the right at any time to modify or discontinue the Service (or any part or content thereof) without notice at any time. We shall not be liable for any modification, change, suspension or discontinuance of the Service. We reserve the right to limit the sales of Audio Products or any other aspect of the Service to any person, geographic region or jurisdiction (which may be on a case-by-case basis). We have made every effort to display as accurately as possible the colors and images of Audio Products on the Site but we cannot guarantee that your computer monitor's display of any color will be accurate. All descriptions of products or product pricing are subject to change at any time without notice. Any offer for any product or service made on the Site is void where prohibited. We reserve the right to refuse any order you place with us. We may, in our

sole discretion, limit or cancel quantities purchased per person, per household or per order. In the event that we make a change to (or if we cancel) an order, we may attempt to notify you by contacting the email and/or billing address/phone number provided at the time the order was made. We reserve the right to limit or prohibit orders that, in our sole judgment, appear to be placed by dealers, resellers or distributors.

5. **Prices.** Prices are as set out on the relevant pages of the Site from time to time. Prices are subject to change by posting new prices or notification of availability at any time. For sales to the State of New York, all listed prices are exclusive of NY sales tax (as applicable from time to time) unless otherwise stated. Please note that use of the Site may be subject to data charges imposed by your internet or mobile phone provider and you will be responsible for payment of any such charges.
6. **Payments.** Payments may be by PayPal, or by credit or debit card using Visa or MasterCard (any other payment methods offered from time to time are detailed on the Site). All transactions are charged immediately. All credit/debit cardholders are subject to validation checks and authorization by the card issuer. If your card issuer refuses to authorize payment, your order will be cancelled and we will not be liable for any delay or non-delivery. We are not responsible for your card issuer or bank charging you as a result of us processing of your credit/debit card payment in accordance with your order nor are we not obliged to inform you of any reason for refusal. By using your credit or debit card, you confirm that the card belongs to you and that there are sufficient funds or credit available to cover the charges. By placing any order hereunder, you warrant and represent that you are legally capable of entering into binding contracts and that you have agreed to be bound by this Agreement. Please note that International payments and certain payment methods may give rise to higher payment processing costs
7. **Refunds.** All Audio Products feature a 7-Day Money Back Guarantee. If you are dissatisfied for any reason, contact us and we will refund your purchase price in full.
8. **Optional Tools.** We may provide you with access to third-party tools over which we neither monitor nor have any control nor input. You acknowledge and agree that we provide access to such tools only on an "as is" and "as available" basis, without any warranties, representations or conditions of any kind and without any endorsement. We shall accept no liability whatsoever arising from or relating to your use of optional third-party tools. Any use by you of optional tools offered through the Site is entirely at your own risk and you should ensure that you are familiar with and approve of the terms on which such tools are provided by the relevant third-party provider in each case.
9. **Copyright.** All rights not expressly granted to User are reserved. The Audio Products are licensed, not sold, to you to be used for and reproduced within your new musical compositions and productions only. All copying, lending, duplicating, re-selling or trading of any Audio Product or other Content is strictly prohibited, save as used for or incorporated into your original created works as detailed below. Only the original purchaser of an Audio Product has the right to embody and reproduce that Audio Product within their music compositions/productions. This license is granted for a single user only (and is given on a worldwide basis). For the avoidance of doubt, no ownership of copyright is transferred you hereunder. You agree and acknowledge that the Company has a proprietary interest in all sound recordings on or within the Site, and that any use by you that frustrates the purpose of this Agreement or circumvents the revenue model of the Company (including without limitation selling, renting, or otherwise using or distributing un-integrated Content) would likely cause irreparable loss to the Company in a way that could not be adequately compensated by damages.
10. **User Content.** If, at our request, you send to us submissions (for example contest entries) or without request you send to us creative ideas, suggestions, comments, proposals, plans, or other materials ("**User Content**") whether online, by email, by post, or otherwise, you agree that we may, at any time, without restriction, edit, copy, publish,

distribute, translate and otherwise use in any medium any such User Content. We shall have no obligation to maintain any User Content in confidence or to pay compensation or provide any response.

11. **User Code of Conduct.** You agree to obey all applicable laws in using the Site and the Content. You agree that you are responsible for your conduct whilst using the Service and you specifically agree:

- not to participate in any form of activity which is unlawful, harassing, libelous, defamatory, abusive, threatening, harmful, vulgar, obscene, profane, sexually-oriented, racially-offensive or otherwise includes objectionable material;
- not to abuse other Users or anyone else;
- not to use the Site to engage in any commercial activities other than as approved hereunder;
- not to register more than one account for yourself or anyone else;
- not to contact anyone who has asked not to be contacted;
- not to “stalk” or otherwise harass any other User;
- not to collect personal data about other users for commercial or unlawful purposes;
- not to use automated means, including spiders, robots, crawlers, data mining tools, or the like to download data or otherwise in relation to the Service; or
- not to attempt to gain unauthorized access to our computer systems or engage in any activity that disrupts, diminishes the quality of, interferes with the performance of, or impairs the functionality of, the Service.

12. **Warranty and Indemnity.** You hereby warrant and represent that you have the right and power to enter into and fully perform all of its obligations under this Agreement; and that you will defend, indemnify, and hold harmless the Company, its parents, subsidiaries, affiliates, directors, officers, employees, and agents, with respect to any claim, demand, cause of action, or debt or liability brought by or claimed by any third party, including attorneys’ fees, to the extent that any such claim is based upon or arises out of a breach of any of your representations, warranties, covenants, or obligations.

13. **Objectionable Material.** If you encounter or become aware of any objectionable or infringing or unlawful content posted anywhere on the Site, please immediately report such material (and the specific page on which it is found) to info@samplesfrommars.com. Please note that there may be adverse legal consequences if you make a false or bad faith allegation through this process.

14. **Termination of this Agreement.** We may at any time terminate this legal Agreement, in our sole discretion without prior notice to you and without reimbursement, if we believe that you may have breached (or acted in a manner indicating that you do not intend to or are unable to comply with) any term herein, or if we are legally required to do so by law, or if continuation is likely to be no longer commercially viable. You acknowledge that we will cooperate fully with investigations of violations of systems or network security at other sites, including cooperating with law enforcement authorities in investigating suspected criminal violations. You may request a withdrawal of any item(s) of your content uploaded to the Site at any time by email to info@samplesfrommars.com. We shall use reasonable endeavors to respond such requests, and or takedown the relevant content, within thirty (30) days.

15. **Liability.** You agree that the liability of the Company to you hereunder shall be limited to the amount you have actually paid to us for its products or services hereunder of, if greater, US\$100. Except as set out herein, we shall not be liable for any indirect or consequential loss of any kind in contract, tort or otherwise arising out of your use of the Site or the Content or in relation to the goods and/or services that we provide. Nothing in this Agreement shall operate to limit or exclude liability for death or personal injury caused by negligence of the Company.

16. **Warranties.** TO THE EXTENT PERMITTED UNDER APPLICABLE LAW IN YOUR TERRITORY, ALL SAMPLES FROM MARS PRODUCTS AND SERVICES ARE PROVIDED ON

AN "AS IS" AND "AS AVAILABLE" BASIS WITHOUT WARRANTY OF ANY KIND, EITHER EXPRESS OR IMPLIED, INCLUDING, BUT NOT LIMITED TO, THE IMPLIED WARRANTIES OF MERCHANTABILITY OR FITNESS FOR A PARTICULAR PURPOSE, OR THE WARRANTY OF NON-INFRINGEMENT. WITHOUT LIMITING THE FOREGOING, THE COMPANY MAKES NO WARRANTY THAT (A) THE SERVICES WILL MEET YOUR REQUIREMENTS, (B) THE SERVICES WILL BE UNINTERRUPTED, TIMELY, SECURE, OR ERROR-FREE, (C) THE RESULTS OBTAINED FROM THE USE OF THE SERVICES WILL BE EFFECTIVE, ACCURATE OR RELIABLE, OR (D) THE QUALITY OF ANY MATERIALS OR SERVICES OBTAINED BY YOU FROM THE SITE OR THE APP, FROM US, OR FROM ANY THIRD PARTIES' WEBSITES TO WHICH THE SITE IS LINKED, WILL MEET YOUR EXPECTATIONS OR BE FREE FROM MISTAKES, ERRORS OR DEFECTS. THE USE OF THE SERVICES IS AT YOUR OWN RISK AND WITH YOUR AGREEMENT THAT YOU WILL BE SOLELY RESPONSIBLE FOR ANY DAMAGE TO YOUR COMPUTER DEVICE OR SYSTEM OR LOSS OF DATA THAT RESULTS FROM SUCH ACTIVITIES.

17. Indemnity. You agree to indemnify us for any loss or damage that may be incurred by the Company, including without limitation legal fees, arising from any breach by you of any warranty or other term herein or your misuse of any material or information obtained through the Site or the Content. You further undertake to indemnify the Company for all loss or damage incurred by the Company in relation to any third party claim against us for infringement of intellectual property rights arising in relation to your provision of materials to the App, the Site and/or the Content.

18. Trade Marks. The brands, products and service names used in the Site and the Content (including without limitation, "Samples From Mars") are trademarks or trade names of the Company or our trading partners unless otherwise stated.

19. Hacking. You agree and undertake not to attempt to damage, deny service to, hack, crack, reverse-engineer, or otherwise interfere (collectively, "Interfere") with the Site and/or the Content in any manner. If you in any way Interfere with of these, you agree to pay all damages we incur as a result. We will cooperate with the authorities in prosecuting any User who Interferes with the Site or the Content or otherwise attempts to defraud the Company or any other parties through your use of the Site or the Content or any services provided hereunder. We reserve the right to deny any or all access or service to any User for any reason, at any time, at our sole discretion. You agree that we may block your access, and at our sole discretion to disallow your continued use of the Site and/or the Content. We reserve the right to take any action we may deem appropriate in our sole discretion with respect to violations or enforcement of the terms of this Agreement, and we expressly reserve all rights and remedies available to us at law or in equity.

20. No Partnership. Your use of the Site and/or the Content creates no partnership, client, fiduciary or other professional relationship.

21. Entire Agreement. This Agreement constitutes the entire agreement between the parties on the subject matter hereof. There are no understandings, agreements, or representations, oral or written, not specified herein regarding this Agreement.

22. Force Majeure. We will not be liable or responsible for any failure to perform, or delay in performance of, any of our obligations hereunder that is caused by events outside our reasonable control.

23. Severance. If any part, term, or provision of this Agreement shall be held by a court of competent jurisdiction to be illegal, unenforceable, or in conflict with any relevant law, the remaining portions or provisions shall still remain valid and continue in full force and effect.

24. No Waiver. No waiver, express or implied, by either party of any term or condition or of any breach by the other of any of the provisions of this Agreement shall operate as a waiver of any breach of the same or any other provision of this Agreement.

25. Variation. This Agreement may be varied from time to time by our posting new terms on the Site, and any such amendment will be applicable to all Users from the date and time such revised terms have been posted on the Site. Your continued use of the Site or Services constitutes agreement with and acceptance of any such amendment or other changes. We constantly experiment and innovate with the Site in order to provide a better experience for Users and you hereby acknowledge and agree that the form and nature of the Services may change from time to time without prior notice to you.

26. Law and Jurisdiction. This Agreement shall be governed by and construed in accordance with the laws of England. Any disputes arising under or in connection with this Agreement shall be subject to the exclusive jurisdiction of the Courts of London, England.

27. Contacting Us. If you have any questions or if you have any complaint about the Site or any Content or other posted materials, or if you believe that you are the owner of the copyright or other rights in any material appearing on the Site, please contact us at the following address: Samples From Mars LLC, a company incorporated in the State of New York with its registered office at 97 S. 6th Street, Ste 3, Brooklyn, NY 11249, USA, or email us via info@samplesfrommars.com.